

This is a combined synopsis and solicitation for commercial items prepared in accordance with the format in FAR Subpart 12.2 –Simplified Procedures. This announcement constitutes the only solicitation; quotations are being requested and a written solicitation will not be issued.

This requirement is being solicited on an unrestricted basis as concurred with by the Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) Office of Small Business Programs. The North American Industry Classification System (NAICS) code is 333998. The Small Business Size Standard is 700 employees. The Request for Quote (RFQ) number is N66604-26-Q-0196.

The Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) intends to award a firm fixed price (FFP) purchase order to Product Planning Inc. (Pro-Plan). Pro-Plan has been the sole designer, manufacturer, and servicer of proprietary equipment for the Electro-Hydraulic Control Valve (ECV) in the Government's infrastructure. The Government has invested considerable resources in developing and fielding this capability with Pro-Plan, which is approved by NAVSEA for use. The Government requires a sole-source acquisition of the full technical data package, spare parts, and test equipment for the system from Pro-Plan. This action is the only viable path to mitigate the immediate risk of obsolescence and ensure the long-term mission readiness of the fleet.

This solicitation is not a request for competitive quotes. A determination not to compete this proposed requirement based on responses to this solicitation is solely within the discretion of the Government. Quotes received will normally be considered solely for the purpose of determining whether to conduct a competitive procurement in the future. The Government's minimum requirement is specified as follows.

CLIN	DESCRIPTION	QUANTITY
0001	Overhaul and Repair Parts Support, in accordance with (IAW) Government Minimum Specifications provided as Attachment 1 to this notice	1
0002	ILS Configuration Historical Records, IAW Government Minimum Specifications provided as Attachment 1 to this notice	1
0003	Test and Evaluation, IAW Government Minimum Specifications provided as Attachment 1 to this notice	1
0004	ECV Design and Manufacturing Drawings, IAW Government Minimum Specifications provided as Attachment 1 to this notice	1
0005*	Government Purpose Data Rights in the data delivered under CLIN 0004	1

*If the offeror claims Government Purpose or Unlimited Data Rights are not already owned by the Government the offeror shall:

1. Propose a value for this CLIN for the Government to purchase Government Purpose rights; and
2. Provide evidence of the internal investment that supports the limited data rights being asserted for evaluation by the Government.

Delivery is FOB Destination to Newport, RI and desired delivery date is 31 January 2027. Delivery of data required via DoD Safe.

Incorporated provisions and clauses are those in effect through the most current Federal Acquisition Circular (FAC). Full text of incorporated FAR/DFARS clauses and provisions may be accessed electronically at <https://acquisition.gov/far>.

The following FAR provisions and clauses apply to this solicitation:

- FAR 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (FEB 2016)
- FAR 52.212-1 Instructions to Offerors—Commercial Items (SEP 2023)
- FAR 52.212-2 Evaluation—Commercial Items (NOV 2021)
- FAR 52.212-3 Offeror Representations and Certifications – Commercial Items (DEVIATION 2025-O0003) (DEVIATION 2025-O0004)
- FAR 52.212-4 Terms and Conditions—Simplified Acquisitions (Commercial Products and Commercial Services)

In addition, the following Defense Federal Acquisition Regulations Supplement (DFARS) clauses and provisions apply to this solicitation:

- DFARS 252.204-7008, Compliance with Safeguarding Covered Defense Information Controls (OCT 2016);
- DFARS 252.204-7009, Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information (OCT 2016);
- DFARS 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting (DEC 2019);
- DFARS 252.204-7015, Notice of Authorized Disclosure of Information for Litigation Support (MAY 2016);
- DFARS 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services (JAN 2021);
- DFARS 252.211-7003, Item Unique Identification and Valuation (JAN 2023)
- DFARS 252.225-7013 Duty Free Entry (AUG 2025)
- DFARS 252.225-7048 Export-Controlled Items (JUN 2013)
- DFARS 252.227-7013 Rights in Technical Data—Other Than Commercial Products and Commercial Services.
- DFARS 252.227-7014 Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation.
- DFARS 252.227-7017: Identification and Assertion of Use, Technical Data, or Computer Software.
- DFARS 252.227-7018 Rights in Other Than Commercial Technical Data and Computer Software—Small Business Innovation Research Program and Small Business Technology Transfer Program
- DFARS 252.247-7023 Transportation of Supplies by Sea (OCT 2024)

Additional Terms and Conditions:

The Government's method of payment is electronic payment via Wide Area Workflow (WAWF).

This solicitation requires registration with the System for Award Management (SAM) prior to award, pursuant to applicable regulations and guidelines. Registration information can be found at www.sam.gov.

Unless proposing CLIN 0005 as detailed above, the offeror shall deliver the TDP with unlimited data or Government Purpose rights. Offerors shall fill and submit clause 252.227-7017 Identification and Assertion Of Use, Release, Or Disclosure Restrictions, provided as Attachment 2 with its quote.

The Government is acquiring the Technical Data Package (TDP), computer software, and associated manufacturing "know-how" for the Electro-Hydraulic Control Valve. Because the Offeror is ceasing operations or selling this product line, the Government requires expanded rights beyond customary commercial terms (as typically defined in DFARS 252.227-7015) to ensure future sustainment, repair, and competitive repurchase by third-party Government contractors.

(b) Specially Negotiated License Addendum:

To achieve this, the Government has included a "Specially Negotiated License Addendum" in the model contract. This Addendum grants the Government the right to use, and authorize third parties to use, the TDP and manufacturing data for manufacturing and sustainment purposes.

(c) Instructions for Completing the Assertion List:

Offerors must submit an Identification and Assertion List detailing all technical data, computer software, and manufacturing processes to be delivered with less than Unlimited Rights. When completing this list, Offerors shall adhere to the following strict formatting requirements to ensure compliance with the Government's requirement for sustainment and manufacturing rights:

Inventory of "Know-How": The Offeror must explicitly list all manufacturing data, process routing sheets, assembly instructions, tooling designs, and source code required to build and maintain the system. Broad, generalized categories (e.g., "All TDP") are unacceptable.

Asserted Rights Category: For any data or software required to manufacture, repair, or sustain the system, the Offeror must not assert standard "Commercial," "Limited," or "Restricted" rights. The Offeror must enter "Specially Negotiated License (Per Contract Addendum)" in the Asserted Rights column.

(d) Example of Acceptable Assertion List Format:

Technical Data or Computer Software to be Furnished/Basis for Assertion Asserted Rights Category

Name of Person Asserting Restrictions

Level 3 TDP for [System Name], including all Manufacturing Process Sheets and Tooling Drawings

Developed at private expense Specially Negotiated License (Per Contract Addendum)

[Authorized Signatory Name/Title]

Embedded Source Code for System Controller Developed at private expense Specially Negotiated License (Per Contract Addendum) [Authorized Signatory Name/Title]

If an Offeror submits an Assertion List claiming standard "Commercial," "Limited Rights," or "Restricted Rights" for data necessary to manufacture or sustain the system, the Government will consider the

proposal to be failing to meet the minimum material requirements of this RFQ. Such assertions legally block the Government's ability to maintain the system post-buyout and may render the quote technically unacceptable.

The Government will evaluate the Offeror's Identification and Assertion List to verify that no restrictions are asserted that would prohibit the Government from manufacturing, repairing, or sharing the TDP with third-party sustainment contractors. Assertions of Limited or customary Commercial rights on critical manufacturing data will be evaluated as Unacceptable.

In accordance with DFARS Clause 252.211-7003, the contractor shall provide a unique item identifier (IUD) for all delivered items for which the Government's unit acquisition cost is \$5,000 or more.

Offeror shall include item prices, shipping costs, delivery terms, and the following additional information with the submissions: point of contact (including phone number and email address), CAGE Code, and UEI number. Quotes should include a validity date of no less than 60 days from due date for receipt of offers.

Quotes shall be submitted electronically via email to Elizabeth Peckham at elizabeth.a.peckham2.civ@us.navy.mil and must be received on or before 12 May 2026 at 1400 Eastern Standard Time (EST). Quotes received after this date are late and may not be considered for award.

Attachments Herein:

Attachment 1: Government Minimum Specifications

Attachment 2: Clause 252.227-7017 Identification and Assertion Of Use, Release, Or Disclosure Restrictions